

The examination is being carried out on the **following application documents**

Description, Pages

1-67 filed with entry into the regional phase before the EPO

Claims, Numbers

1-10 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/4-4/4 filed with entry into the regional phase before the EPO

1 Reference is made to the following document; the numbering will be adhered to in the rest of the procedure.

D1 WEI ZHOU ET AL: "Discovery of Pteridin-7(8 H)-one-Based Irreversible Inhibitors Targeting the Epidermal Growth Factor Receptor (EGFR) Kinase T790M/L858R Mutant", JOURNAL OF MEDICINAL CHEMISTRY, vol. 56, no. 20, 24 October 2013 (2013-10-24), pages 7821-7837, XP055096868, ISSN: 0022-2623, DOI: 10.1021/jm401045n

The following documents have been cited in the international search report; the numbering will be adhered to in the rest of the procedure.

D2 CN 1 373 763 A (WARNER-LAMBERT COMPANY) 9 October 2002 (2002-10-09)

D3 WO 2006/002367 A1 (IRM LLC) 5 January 2006 (2006-01-05)

D4 WO 2013/170671 A1 (EAST CHINA UNIVERSITY OF SCIENCE AND TECHNOLOGY.) 21 November 2013 (2013-11-21)

2 D1 which concerns EGFR inhibitors, discloses the compounds 3w and 3x.

D2 which describes CDK inhibitors, discloses the compounds 1, 2, 9, 10, 12, 18, 19, 29, 36-38, 40, 50 and 51.

D3 discloses compounds for the treatment of diseases associated with various protein kinases but EGFR (cancer), specifically mentioned are the compound in embodiment 4 and compound 9.

D4, which concerns EGFR inhibitors, discloses the compounds 3, 18-22 and 32. The activity has been proved in table 1.

Accordingly, the subject-matter of present claims 1 and 6-10 is not novel with respect to article 54(1)(2) EPC.

- 3 D1 and D4 both concern EGFR inhibitors and thus form a possible prior art for the assessment of inventive step.

A skilled person looking for alternative EGFR inhibitors, starting either from D1 or D4 would obviously modify the known structures with a reasonable expectation to obtain compounds with the desired activity. This is especially true with regard to D1 since the compounds disclosed there correspond partly the present preferred compounds.

Therefore, the present subject-matter, as far as it is novel, does not involve an inventive step with respect to article 56 EPC.

- 4 The applicant has defined several substituents in present claims 1 the 2 by the use of brackets which renders these claims vague and unclear in meaning (article 84 EPC).
- 5 The treatment claim 10 needs to be reformulated in order to comply with article 54(5) EPC.
- 6 Present claims 7 and 10 are characterised by functional features. Claims 7 and 10 do not comply with article 84 EPC , because the therapeutic application is functionally defined by a mechanism of action (EGFR mediated diseases, inhibiting EGFR) which does not allow any practical application in the form of a defined, real treatment of a pathological condition. This objections may be overcome by introduction in the claims a list of pathological conditions cited in the application.